On the Papers

THE IMPORTANCE OF STRESS: INDICATING THE MOST IMPORTANT WORDS IN A SENTENCE

GEORGE D. GOPEN

The author is professor of the practice of rhetoric at Duke University.

Have you heard the advice, "Write the way you speak"? It is bad advice.

When you speak—and especially when you speak in court—you have a number of ways you can demonstrate to your listeners which of your words you would like them to emphasize the most. You can wave your hands or use body language. You can pronounce a word at a higher decibel level than its neighbors. You can vary your sound—higher or lower, softer or louder, faster or slower. But on paper, all these indications of emphasis disappear. You are left only with word choice and word placement.

You, being the author, know what you wanted to say. You look at your sentence: It seems obvious to you how it should be "performed" by any reader. But an author is often the worst person in the world to estimate how others will read a sentence. It is insufficient for you to construct sentences that *can* be interpreted the way you want. You must construct them so a huge percentage of your readers *will actually* interpret them correctly. We all understand the importance of making the best possible decisions concerning word choice; but, surprising though it may seem, word location is a far more important tool to master. How can you manipulate the placement of words to signal to your readers when they should be reading a particular term with special emphasis?

It would be nice, would it not, if we were allowed to print all such to-be-emphasized words in red? Take, for example, the sentence used in teaching typing: "The quick brown fox jumps over the lazy dog." If I told you there was only one word in that sentence uppermost in my mind at the moment, what would be your chances of guessing that word correctly? Given that there are seven important-looking words, your chances would be close to one out of seven, or 15 percent. How would your chances improve if I were to print that word in red? Or even just in all caps?

The quick brown fox jumps over the LAZY dog.

Now you could hardly mistake what was most important to me. If I were to speak the sentence to you, I could emphasize "lazy" with my voice; but on the page, that emphasis cannot be "heard." It must somehow be made apparent to the eye.

What if I were to rewrite the sentence like this: The quick brown fox can jump over the dog because the dog is lazy.

Now more than 90 percent of readers might guess that "laziness" is foremost in my mind. This is a phenomenon peculiar to the English language.

We value any moment in a sentence when the grammatical structure comes to a full halt. I call such a location the "stress position."

A period always accomplishes this closure; but the same effect is realized by any properly used colon or semicolon. It can never be created by a comma, because there are too many different signals a comma can send. We always have to go beyond a comma to find out what kind of pause it is asking us to make. Commas never signal full syntactic closure.

Here is an example I have used with thousands of students and clients to teach the efficacy of the stress position:

> As used in the foundry industry, "turnkey" means responsibility for the satisfactory performance of a piece of equipment in addition to the design, manufacture, and installation of that equipment. P et al. agree that this definition of turnkey is commonly understood in the foundry industry.

Take a moment to underline any words in these two sentences that you think the writer might be wanting you to stress.

When I ask as few as a dozen students or clients to do this, *all* of the following terms get underlined by someone: foundry industry; turnkey; responsibility; satisfactory performance; design, manufacture, and installation; P et al.

Note that "a piece of equipment" fails

Published in Litigation, Volume 38, Number 1, Fall 2011. © 2011 by the American Bar Association. Reproduced with permission. All rights reserved. This information or any portion thereof may not be copied or disseminated in any form or by any means or stored in an electronic database or retrieval system without the express written consent of the American Bar Association.

to make this list; and yet, that is the term that occupies the first sentence's sole stress position. The author had only one opportunity to indicate his most significant words, and he blew it. As a result, he left all of us guessing; and in a group of a dozen people, almost everyone will choose a different assortment. Everyone thinks he or she has successfully made sense of the sentence; but often not a single person has correctly guessed what was in the author's mind. Here is the example again, with his sole intended emphasis printed in all caps:

> As used in the foundry industry, "turnkey" means responsibility for the SATISFACTORY PERFORMANCE of a piece of equipment in addition to the design, manufacture, and installation of that equipment. P et al. agree that this definition of turnkey is commonly understood in the foundry industry.

In my experience, in a lecture hall filled with 200 people, no more than four will have underlined "satisfactory performance" and *only* "satisfactory performance." The failure of communication is that severe.

Note that no term in the second sentence of the example is in caps. Any such sentence should not be a sentence. Its information should be tucked into some other sentence—and *not* in a stress position.

When is a sentence too short? When it has no viable candidate for the stress position. When is a sentence too long? When it has more viable candidates for stress positions than there are stress positions. It matters not how many words a sentence contains. It matters a great deal that the number of stress-worthy terms is the same as the number of stress positions.

You have probably heard the advice, "To make a sentence better, make it shorter." Forget it. It is wrong. Here is a good replacement for it: To make a sentence as good as it can be, make sure that the information you wish the reader to stress always appears in a stress position—next to a period, colon, or semicolon. (I will return to the use of the colon and semicolon in a future article.)

> You are your client's advocate. Your prose must act as your advocate.

Am I suggesting that if our author had only transported "satisfactory performance" to the end of a single sentence, most readers would have understood his intentions? Yes. Here is one possibility:

> As P et al. agree, the foundry industry uses the term "turnkey" to signify responsibility not only for the design, manufacture, and installation of a piece of equipment but also for its satisfactory performance.

Now more than 90 percent of readers will get his message.

What if P et al.'s agreement had also been something worthy of stress? Then we might create a second stress position, just for that:

> P et al. agree: The foundry industry uses the term "turnkey" to signify responsibility not only for the design, manufacture, and installation of a piece of equipment but also for its satisfactory performance.

What if the other three functions ("design, manufacture, and installation") were also worthy of stress? Then we might create an additional stress position for them:

> P et al. agree: The foundry industry uses the term "turnkey" to signify responsibility for a piece of equipment's design, manufacture, and installation; but the industry also uses the term to indicate responsibility for its satisfactory performance.

Important news: Locating the stress-worthy information of a sentence elsewhere than in a stress position is the single most widespread and crippling problem in professional English writing today. Of the 245 MDs and PhDs I have worked with at a prominent federal agency, only one did not suffer from this epidemic problem.

Most judges will read your brief only once. Are you really content to have them guessing—sentence after sentence—what word or words they should be emphasizing? You are your client's advocate. Your prose must act as your advocate.

This is neither a mechanical nor a cosmetic concern. Because it involves the core of your thinking in any sentence, you can "repair the damage" only by reentering your thought process and inquiring, "What *is* the most important thing I want to say here?" It is not an easy fix. If you habitually put the important thing some place other than the stress position, your habit will persist unless you fight against it, consciously and with substantial mental energy.

Begin by using this new advice as a revision tactic. Write your sentence as you normally would. Then go back and ask yourself which word or words you would print in red or in caps if allowed to do so. Get those words right next to a period, colon, or semicolon. Try it. You'll like it. So will your readers.

One last concern: When should you use artificial emphasis—italics, underlining, caps, bold, etc.? Use it whenever the nature of our grammar makes it impossible or awkward to get the emphatic word next to a colon, semicolon, or period. For examples, see all the italicized words in this article. ■

Published in Litigation, Volume 38, Number 1, Fall 2011. © 2011 by the American Bar Association. Reproduced with permission. All rights reserved. This information or any portion thereof may not be copied or disseminated in any form or by any means or stored in an electronic database or retrieval system without the express written consent of the American Bar Association.

On the Papers

ENSURING READERS KNOW WHAT ACTIONS ARE HAPPENING IN ANY SENTENCE

GEORGE D. GOPEN

The author is professor of the practice of rhetoric at Duke University.

A reader will fail to understand what a writer meant by a sentence if the reader cannot perceive what actions are supposed to be taking place therein. But exactly how does a reader go about discerning which words in a sentence are intended to convey those actions? I'll give the relatively simple answer to that question—an answer taught almost nowhere in our educational systems—after giving you a chance to experience it in the following example, which I have explored with thousands of students and clients.

Take a moment to underline the word or words in the following sentence that you think the writer intended you to perceive as actions:

> 1a. What would be the employee reception accorded the introduction of such a proposal?

In my experience, in a group of 20 people, some will underline no words, while some will underline one word, some two, some three, some four, and some five. From those 20 people, I will usually get anywhere from 14 to 20 different answers. What a phenomenon: No group of 20 people can come close to agreeing on what is happening in this sentence.

Now do the same task for this revision of that sentence:

> 1b. How would the employees receive such a proposal?

In a group of 20 people, usually between 15 and 18 will underline only one word—"receive." The others will usually underline two words, one of which is "receive."

Why is there such agreement in this case? It is not because (1b) is shorter than (1a). It is not because (1a) uses a passive verb and (1b) an active. The discussion of these two vexed issues will have to await future articles in this series.

The answer is quite simple: Readers of modern English expect that the action of a sentence will be articulated by its verb. We lean forward to the verb, expecting that it will announce what is going on: "How would the employees *receive* such a proposal?" When the verb seems to tell us what action is happening, we generally accept that as the truth and proceed from there. If the verb fails to settle that issue, then we have to seek out alternative candidates. But readers tend to hurtle forward toward the end of this sentence—even as they try to locate the missing action. That attempt—to have the mind travel in two directions simultaneously—produces the fuzzy-headed feeling of non-comprehension that we all experience when reading is not easy.

What words do people tend to underline in sentence (1a)? Many underline "would be." Is that an action? I asked the only person who could know for sure—the writer. I had a long conversation with her about this, many years ago. She said she had not intended those words to be an action. Why then do so many people underline them? Because those two words are part of the verb—"would be . . . accorded." We can feel that we are approaching the action, because we know we are engaging with the sentence's verb. We therefore read "would be" with a type of reading energy usually reserved for processing a sentence's action. But if you underlined "would be," you are already out of the ball game: You have failed to perceive the writer's intention. It is not your fault; it is her fault. She signaled to you that "would be" was the action by making it part of the verb. No wonder you stumbled.

Between 60 percent and 70 percent usually underline "accorded." She told me that was wrong: I could dispense with the concept of "accorded" and not disturb her meaning. Why do so many readers lose this interpretive game at this point? Because "accorded" is the previously missing part of the verb. We have been waiting for some time for this second shoe to drop. When it finally drops, most of us are convinced "accorded" must be the action. After all, not only is it the most important part of the verb, but it is the most multi-syllabic and impressive

Published in *Litigation*, Volume 38, Number 2, Winter 2012. © 2012 by the American Bar Association. Reproduced with permission. All rights reserved. This information or any portion thereof may not be copied or disseminated in any form or by any means or stored in an electronic database or retrieval system without the express written consent of the American Bar Association.

word in the sentence. Of course it is the action, we think. We are wrong.

Some people underline "proposal," which is a noun made out of a verb. This is called a nominalization. The writer told me "proposal" is not an intended action.

About 50 percent underline "reception"—another nominalization. The writer told me that was correct. She had tried to convey the action of receiving; but since she used a noun and not a verb to do the job, no more than half of her readers get that message.

So, with great confidence, I revised her sentence and produced sentence (1b). It is shorter than (1a) because I left out yet another nominalization—"introduction." It was logically unnecessary: How could the employees receive the proposal if it had not already been introduced? She looked at my sentence (1b) and replied that, elegant and concise though it may be, it failed to translate adequately her original (1a). "Introduction," she told me, was one of her two actions. In any group of 20 people, no more than between zero and two are likely to have underlined those two and only those two words. In other words, almost no one ever perceives what she was trying to say.

> Locate the action you want your reader to perceive in the sentence's verb.

At this point in our discussion, I realized that I had no idea what sentence (1a) was trying to say, but I could still tell her how to rewrite her sentence so that her meaning would become available to a majority of her readers. All she had to do was to make those two nominalized actions into verbs, and her meaning would float to the surface. Quickly, and with little effort, she produced the following revision, which clearly articulates what she was trying to say:

> 1c. How would the employees receive such a proposal if the executive board introduced it at this time?

Two clauses, two verbs, two actions. You can feel the lean forward clearly: "How . . . receive, . . . if . . . introduced?" I had figured out the first clause: It is my sentence (1b). But I missed the second clause entirely. The crux of the matter is the information now located in the sentence's stress position, its important moment of syntactic closure: "at this time." It was the timing of the introduction, not its mere existence, that was the key point. (For an explanation of the stress position, see my earlier article in this series—*The Importance of Stress: the Most Important Words in a Sentence*, 38 Litigation 22 (Fall 2011)).

My advice to you is conceptually simple, even though it is sometimes difficult to put into practice: Locate the action you want your reader to perceive in the sentence's verb. Most people will find it there. Not only will they read your sentence correctly, but they will use far less energy in accomplishing that task.

You may recall your high school teacher admonishing you to "use strong verbs and avoid weak verbs." That was bad advice because of what she meant by "strong" and "weak." She had a short list of short verbs that she labeled "weak." That list was headed by the verbs to be, to have, and to occur. She might then have given you 10 much "stronger" verbs of several syllables each and required you to use each in a sentence for Tuesday's homework.

I am offering you different advice: Use strong verbs and avoid weak verbs. My advice, which sounds exactly the same as hers, is different because of the way I define "strong" and "weak." No verb is strong or weak by itself, but only in context. Every verb has meaning. If the meaning of that verb is the action of the sentence in which it exists, I call that a strong verb. The verb "to be," for example, has a number of meanings—it denotes existence, equality, or characterization. If that is what it does in your sentence, it is strong.

> The plaintiff's argument is fatally flawed because . . .

In that clause, the only act is the labeling of the argument as "fatally flawed." The verb "is" does an excellent job of labeling.

If the meaning or meanings of a verb have little or nothing to do with the action of the sentence in which it appears, then the verb, I suggest, is weak. A fine example of that is the "would be accorded" of sentence (1a) above.

If you want your readers to be keenly aware of what is going on at all times, make sure the actions you intend them to perceive are articulated by your verbs. If you have a legitimate need to undercut the force of an action because, forcefully stated, it would be impolitic or impolite or downright cruel, then use some other part of speech to water the action down. Not "Dear Madam, we fire you," but rather the softer "Dear Madam, discontinuation of our employment agreement with you has become necessary because of . . . ."

Nominalizations are neither good nor bad in themselves but only in context. When is one of these abstract nouns really destructive of prose? When it usurps the action from the verb. "Reception"; "introduction"; "proposal": Which of those—or which combination of those—was meant to be the action of the sentence? Only the writer knew for sure. ■

Published in *Litigation*, Volume 38, Number 2, Winter 2012. © 2012 by the American Bar Association. Reproduced with permission. All rights reserved. This information or any portion thereof may not be copied or disseminated in any form or by any means or stored in an electronic database or retrieval system without the express written consent of the American Bar Association.

On the Papers

WHOSE STORY IS THIS SENTENCE? DIRECTING READERS' PERCEPTIONS OF NARRATIVE

GEORGE D. GOPEN

The author is Professor Emeritus of the Practice of Rhetoric at Duke University.

Please take a moment to rank the following three sentences by quality of writing. Which is best? Which worst?

(A) The defendant deprived the plaintiff of his contractual rights by refusing to forward the shipment.

(B) The plaintiff was deprived of his contractual rights by the defendant's refusal to forward the shipment.

(C) The refusal to forward the shipment by the defendant deprived the plaintiff of his contractual rights.

If you chose (A) as the best, you were wrong. If you chose (C) as the best, you were wrong. If you chose (B) as the best, you too were wrong. The right answer to that question is always, "It depends." On what does it depend? It depends in part on whose story the sentence was trying to tell. This article discusses how you, as a writer, can control—insofar as that is possible—whose story a reader perceives you to be telling in any given sentence. There is no rule here—only high probabilities; but those probabilities are high enough for you to take them into consideration with every sentence you write.

Sentences (A), (B), and (C) cannot be saying completely different things, since all three deal with the same two people and a single action. However—though perhaps less obvious—the three sentences cannot be identical in meaning, because in each the information appears in a different order. Word order, word placement, and sentence structure all send important signals to readers concerning what function or functions each word is intended to perform.

If we could make a new rule in English that a sentence should be read as being the story of whatever person, thing, or idea is printed in green, then no one (excepting those who are color-blind) would ever misperceive an author's intentions as to whose story it is supposed to be. Color "the defendant" green in each of these three sample sentences, and each becomes the story of the defendant. But they won't let us do that.

What do they let us do? That is best put not in terms of what "they" allow, but rather in terms of what we tend to do most of the time—even though no one ever taught us to do it in school. It is what I call a "reader expectation."

Readers tend to read a clause as being the story of whoever or whatever shows up as the grammatical subject of that clause. They tend to do that no matter how you as author would like the sentence to be interpreted. Therefore, for the three previous sample sentences, most readers will read (A) as the story of the defendant, (B) as the story of the plaintiff, and (C) as the story of "the refusal to forward the shipment." Since readers will tend to do this whether you want them to or not, it makes sense that you become aware that each of your clauses will be a narrative told from the perspective of its grammatical subject.

In a one-clause sentence, the grammatical subject will usually be read as whose story the sentence will be. But what if your sentence contains two (or more) clauses? Compare these examples:

(D) Even though the plaintiff delivered the goods on time, the defendant chose to refuse them.

(E) The defendant chose to refuse the goods, even though the plaintiff delivered them on time.

In (D), the first clause is the story of the plaintiff, and the second is the story of the defendant. Whose story is the sentence as a whole? Most readers will say it is the defendant's. In (E), the first clause is the story of the defendant, and the second is the story of the plaintiff. Whose story is the sentence as a whole? Most readers again will say it is the defendant's. This tells us that in sentences with more than one clause, readers tend to read the sentence as a whole as being

Published in *Litigation*, Volume 38, Number 3, Spring 2012. © 2012 by the American Bar Association. Reproduced with permission. All rights reserved. This information or any portion thereof may not be copied or disseminated in any form or by any means or stored in an electronic database or retrieval system without the express written consent of the American Bar Association.

the story of whoever or whatever shows up as the grammatical subject of the main clause. In both cases here, the plaintiff shows up in the "even though" clause; the defendant shows up as the subject of the "main" clause.

I put these terms in quotation marks because I use them differently from your grammar books. There are only three units of discourse we need concern ourselves with in trying to control writing: the main clause; the qualifying clause (my term); and the phrase. A "main clause" has a subject and a verb and can stand by itself as a sentence. A "qualifying clause" has a subject and a verb but cannot stand by itself as a sentence. A "phrase" is a word grouping that lacks either a subject or a verb—or both. For a reader, a main clause has greater weight than a qualifying clause; and a qualifying clause has greater weight than a phrase. It is that simple.

A main clause, therefore, tells the sentence's main story. The grammatical subject of that clause is therefore the "whose story" of the sentence as a whole.

That connects to a concern about sentence length, especially in legal writing. I am very much opposed to all those well-intentioned writing teachers and Plain English promoters who tell us to make sentences better by making them shorter. That is a false issue. There are wonderful 150-word sentences and deplorable 10-word sentences. When the length of a sentence becomes burdensome, it is usually because something has gone wrong with the structure. Consider this lengthy sentence:

> (F1) Even though the plaintiff delivered the goods on time, within two hours of the expiration date as explicitly delineated by Section 27(A)(2)(d) of the contract, and accompanied them with the appropriate papers, duly signed and counter-signed by the appropriate officials, who had called ahead to indicate they were soon to be on their way to the designated delivery spot (see Section 27(B)(i)(a) of the contract), the defendant chose to refuse them.

It is not the mere length—71 words—that makes this sentence hard to read; rather, it is the nature of its structure, which shows a lack of concern for or knowledge of how readers go about reading. Whose story is this sentence as a whole? It is the story of the grammatical subject of the main clause—in this case, the defendant. When do we learn that identity? Far too late. We have been reading for 66 words—the equivalent of about three normal professional sentences—before we are informed that all of those 66 words had been telling us a story about the defendant. Give us that knowledge up front, where we expect it to appear, and the same information becomes far easier to digest on first reading.

> I am opposed to those who tell us to make a sentence better by making it shorter.

> (F2) The defendant chose to refuse the goods, despite the plaintiff's extraordinary efforts to comply with the delivery requirements: The plaintiff delivered the goods on time, within two hours of the expiration date as explicitly delineated by Section 27(A)(2)(d) of the contract; the plaintiff accompanied them with the appropriate papers, duly signed and counter-signed by the appropriate officials, as required by Section 27(B)(i)(a) of the contract; and, in addition and without being required to do so, those officials had called ahead to indicate they were soon to be on their way to the designated delivery spot.

This revision, (F2), a full 95 words, is actually 24 words longer than the original, (F1). It is significantly easier to read, I would argue, because at every moment it is so clear whose story is being told. The first main clause is the story of the defendant. What action did that defendant do? We look to the verb: The defendant "chose to refuse." After the colon, we get a series of three main clauses that form (as the colon had promised) a list that redefines the term "extraordinary efforts." Each subject/verb combination presents us with another "whose story"/"what's happening" sub-story: "the plaintiff delivered"; "the plaintiff accompanied them"; and "officials called ahead."

In a previous issue of Litigation (Winter 2012), I argued that readers tend to look to the verb to find out what is going on in a sentence. Combining that with the "whose story" argument here, the combination of subject-verb tells the reader whose story it is and what is happening. That core of information is essential for readers of English to have as soon as possible in a sentence. It also must be accurate. If your main point in this sentence is what the defendant did, do not let the plaintiff appear as the grammatical subject of your main clause.

It makes sense, therefore, not to create sentences with two main clauses on either side of a comma followed by an "and."

The plaintiff did this, and the defendant did that.

We know whose story each clause is; but whose story is the sentence as a whole? The "and" fails to tell us how to put these two clauses together. It is a weak structure: Avoid it. ■

[I will continue this topic next issue.]

Published in *Litigation*, Volume 38, Number 3, Spring 2012. © 2012 by the American Bar Association. Reproduced with permission. All rights reserved. This information or any portion thereof may not be copied or disseminated in any form or by any means or stored in an electronic database or retrieval system without the express written consent of the American Bar Association.

On the Papers

WHO DONE IT? CONTROLLING AGENCY IN LEGAL WRITING, PART II

GEORGE D. GOPEN

The author is Professor Emeritus of the Practice of Rhetoric at Duke University.

In our culture, lawyers have an affinity for abstract nouns. The original fault is Aristotle's. Before him, most people had noticed that things moved. Aristotle turned this into an abstract concept by using the Greek equivalent of the word "motion." An idea stated as a noun tends to sound far more profound than when it is stated as a verb. We call nouns made out of verbs "nominalizations." They successfully keep nonprofessionals at a distance from the concepts being invoked.

Legal writing is often attacked for relying too heavily on these nominalizations. But the problem here is neither their nature nor their number: It is their use at inappropriate moments. Quite simply, nominalizations are consistently treacherous when they are allowed to state what is going on. That job should be left to the verb.

Lawyers are so in touch with who did what in their cases that any word they use to refer to an action will immediately bring to their mind the people and events involved. As legal writers, they would like to believe that the same immediate association will happen in the minds of all their readers. To make matters worse, readers fool themselves into thinking they understand a sentence as long as it sounds professional and makes some sense. As soon as a sentence makes *some* sense, readers tend to assume that is the sense it was intended to make.

It is insufficient to write a sentence that is merely capable of making the sense you intend. The sentence is sufficient only when it is highly likely to communicate that thought to more than 90 percent of its readers.

Nominalized sentences can sound so intellectually professional that readers are not aware of how incomplete the communication actually was. Here is an example of multiple nominalizations making readers mistakenly believe they know what the sentence is saying. How well do you understand the following sentence on first reading?

> 1a. If there could be the presentation of data that would indicate the representation of the status of the problem was accurate, then a decision could be made.

The author of (1a) tells me she meant to refer to three specific actions. Here it is again, with her actions italicized:

> 1b. If there could be the *presentation* of data that would indicate the *representation* of the status of the problem was accurate, then a *decision* could be made.

Did that help you better understand the sentence's meaning? If you think you now understand it, you are still deceiving yourself. And that is not your fault: It is a trick nominalizations play on readers. The fault lies in the writer. Here's why.

Because readers look to the verb to discover the action of a sentence, putting it elsewhere hides it from the reader. When actions are articulated as active verbs, their subjects necessarily and automatically reveal the agents who did those actions. If we revise (1a) so that the three actions appear as verbs, we discover how ignorant we have been of who is doing what:

> 1c. If [?] *presents* data that would indicate that [?] had accurately *represented* the status of the problem, then [?] *could decide* to . . . .

Not only do we not know who these agents are, but we cannot even tell how many people are involved—one, two, or three. Put the same person in all three brackets: The sentence makes sense. Put three different people in the three brackets: The sentence makes a different kind of sense. Put any combination of one-and-two or two-and-one in the brackets: The sentence makes six additional kinds of sense. We are woefully ignorant of what this writer was trying to convey—no matter how hard we have tried nor how successfully comprehending we might feel.

When these nominalizations-representing-actions pile up in great numbers, leaving agency continually unarticulated,

Published in *Litigation*, Volume 39, Number 2, Spring 2013. © 2013 by the American Bar Association. Reproduced with permission. All rights reserved. This information or any portion thereof may not be copied or disseminated in any form or by any means or stored in an electronic database or retrieval system without the express written consent of the American Bar Association.

readers have great trouble following the story. Another example:

> 2a. To obligate a corporation upon a contract to another party, it must be proven that the contract was its act, either by corporate action, that of an authorized agent, or by adoption and ratification and such ratification will be implied by acquiescence or the acceptance of the benefits of such contract, it being essential to implied ratification that the acceptance be with knowledge of all pertinent facts.

A non-lawyer will be dizzied by this sentence. Lawyers will be less dizzied, because they have to read so much prose like this; but they will be severely hampered in their comprehension all the same. I asked the author to bold-face the terms that denoted the actions he intended to convey. Here is what he bolded:

> 2b. **To obligate** a corporation upon a contract to another party, it **must be proven** that the contract was its **act**, either by corporate **action**, that of an authorized agent, or by **adoption** and **ratification** and such **ratification** will be implied by the **acquiescence** or the **acceptance** of the benefits of such contract, it being essential to implied **ratification** that the **acceptance** be with **knowledge** of all pertinent facts.

Note that after the first two, all the other ten are nominalizations.

I then asked him to change the bold-faced words to verbs and to supply the appropriate subject for each verb. With this list of agent-actions now expressed as subject-verbs, I asked him to reconstruct the story he had wanted to tell us, expressing the action as verbs. Another example:

> 2c. For a contract **to obligate** a corporation to another party, the other party **must prove** that the corporation **acted** in one of two ways:
>
> (1) The corporation or its authorized agent **explicitly acted** to enter the contract; or
>
> (2) the corporation **implicitly adopted** and **ratified** the contract when it **acquiesced** in or **accepted** its benefits.
>
> In this second circumstance, the other party **must show** that when the corporation **accepted** the benefits of the contract, the corporation **knew** all the pertinent facts.

Even non-lawyers recognize this as English they could understand—if they had a pressing enough need. But, you might query, how did this become two sentences instead of one—with the first of these divided into two subsections? That happened because the author discovered the shape of the story he was telling. This is no mere cosmetic or mechanical revision process I am suggesting: It is a controlled way of revisiting your thought process.

While doing this revision, my client realized that he had been referring to two main alternatives, and he had then offered a smaller qualification of the second one. It made sense to state the general rule in a single sentence, reserving the smaller qualification for a separate sentence. He created the numbers and indentations for the first sentence when he realized its two-fold nature. The structure of the revision flowed from the inherent re-organization of the thought. We have a technical term for this healthy relationship between structure and substance: We call it "good writing."

The moral of this tale: When agents and actions are constantly expressed as subjects and verbs, the story is likely to be perceived by most readers with great clarity.

The constant omission of agency can raise ethical issues. Here is a quote from a news report of a 1972 press conference in which the secretary of the interior was intentionally understating the downside of the controversial practice of strip mining. (In the 1970s, strip mining companies would cut down all the trees on a hill, extract the minerals from the ground, and leave a ravaged-looking mess behind when finished.) I have italicized the nominalized phrases that disguise the actions.

> 3. The Secretary also concedes that surface coal mining operations will destroy wildlife. He contends that "while *reduced populations* will result from *increased human activity* in the areas and from the *loss of habitat*, no adverse long-term impact is anticipated."

What did he say? It sounds like he was telling us that although there may be some rough moments along the way with strip mining, everything will be just fine in the long run.

Let us look at the italicized noun phrases.

"Increased human activity" refers to the act of strip mining.

"Reduced populations" does not refer to groups of people losing weight: The appropriate verb-centered translation might be "kill the bunnies."

"Loss of habitat" does not refer to creatures misplacing their houses: It translates to the verb phrase "destroy their homes."

Given this, by whom is "no long-term impact [to be] anticipated"? Not by the bunnies; but rather by the people who stand to profit from the strip mining.

The full translation: "By strip mining, we kill the bunnies and destroy their homes; but it doesn't bother us."

When we explore this environmental problem by using grammatical subjects to identify the agents and verbs to identify the actions, we get to the core of the debate. On the one hand, bunnies suffer; on the other hand, people benefit. That, in a nutshell, is the environmental problem. How much suffering by the bunnies are we willing to impose in order for us to benefit from the activity? The problem is no longer hidden by the language. ■

Published in *Litigation*, Volume 39, Number 2, Spring 2013. © 2013 by the American Bar Association. Reproduced with permission. All rights reserved. This information or any portion thereof may not be copied or disseminated in any form or by any means or stored in an electronic database or retrieval system without the express written consent of the American Bar Association.

On the Papers

HOW TO OVERBURDEN YOUR READER: SEPARATE YOUR SUBJECT FROM YOUR VERB

GEORGE D. GOPEN

The author is Professor Emeritus of the Practice of Rhetoric at Duke University.

We should stop evaluating the readability of our sentences by looking at the combination of the meanings of words and look instead at the structure in which the words are assembled. Take this sentence, for example:

> 1a. The trial court's conclusion that the defendants made full disclosure of all relevant information bearing on the value of Knaebel's stock is clearly erroneous.

The sentence is hard to read. Why? It feels long, but not because it contains 24 words. Nor are any of its words unfamiliar. It is hard to read because of its structure. Its verb ("is") is separated from its subject ("conclusion") by 17 words—71 percent of the sentence. This is a burdensome wait because of the reader's expectation that every grammatical subject will be followed almost immediately by its verb.

The subject tells us who is doing the action; the verb tells us what is happening. Those two pieces of information need to be experienced together. In our reading process, we need to "hear" them reverberating at the same silent decibel level. Waiting for the verb to appear is like waiting for the second shoe to drop. If that arrival is delayed long enough, eventually it commands all available attention.

As a result, anything that intervenes between subject and verb is read as interruptive. If the interruption is brief and easily distinguishable, it causes no problem:

> SUBJECT, however, VERB. . . .

If it is slightly longer, but digestible in one gulp, it still will not be likely to overburden us:

> SUBJECT, except on Tuesdays, VERB. . . .

If, however, that interruption grows to great length, we begin to grow weary under the burden of continually having to wait for the verb's arrival:

> SUBJECT, except on Tuesdays, but not if it is raining, unless it had also rained on the previous Monday, VERB. . . .

But worst of all is the case when the interruptive material is the information the writer wanted us to emphasize the most. Its structural location tells us one thing—"Don't pay much attention to me because you're still waiting for the verb to arrive"; but the author intends that information to be shouting, "Look at me! I'm the most important thing here!" That is the most serious problem with sentence (1a) and thousands of sentences just like it.

The moment we read the grammatical subject "conclusion," we gear up to experience the arrival of its verb. But instead of the verb, we get a "that" clause. During the reading of the "that" clause, much of our reading energy must be set aside to continue anticipating the arrival of the main verb.

But within the interruptive "that" clause, we encounter a second subject-verb combination. When that subordinate subject appears, we formulate a second verb-arrival expectation—this time for the verb of the "that" clause. We are now dealing with two expectations aimed at the arrival of two separate verbs, the second of which must arrive first. That is a complicated reading task.

When that second verb finally arrives, so long awaited, it tells us nothing that we did not already know about the subject. Then we encounter a negative label, "clearly erroneous," and the door slams shut. We realize that whatever the sentence was meant to communicate, we have missed it.

We tend to blame ourselves for such a lack of comprehension. If that describes you, then, please, stop feeling bad. The fault here is not yours, but the writer's. If you have been paying a modicum of attention to a sentence but find its sense imperceptible even though its words are recognizable, it is most likely the fault of the writer. Perhaps all the necessary words are on the page, but they do not appear in the proper structural locations to send you the necessary instructions for the interpretive process.

We can repair the damage easily enough: Just move the verb next to its subject and reconstruct further as seems necessary.

For our sample sentence, we can move the main verb, "is," next to its subject, "conclusion."

The revision of the first clause:

Published in *Litigation*, Volume 39, Number 3, Summer 2013. © 2013 by the American Bar Association. Reproduced with permission. All rights reserved. This information or any portion thereof may not be copied or disseminated in any form or by any means or stored in an electronic database or retrieval system without the express written consent of the American Bar Association.

1b. The trial court's conclusion is clearly erroneous. . . .

"Is" is the verb; but is it the action? The author told me he intended two actions—"conclusion" and "erroneous"—the second of which was more important than the first. We can signal that to the reader by making them both verb forms, but giving the main verb over to the more important action:

1c. The trial court clearly erred in concluding that. . . .

Notice how we are now free to pay full attention to whatever comes after the "that." We are no longer holding something in reserve, waiting for a main verb that has yet to arrive. We also are now informed that we should color everything in the "that" clause stupid.

We must understand, however, that version (1c) is not necessarily the "right" version, or even a "better" one. It certainly is stronger in the force of its accusation of the court's error, but there are times when such strength can be a drawback. What, for instance, if the writer will have to appear in front of this court two months later to argue a different case? Under that condition, "The trial court clearly erred in concluding that . . ." could now be too strong. In such a case, what could we do?

The court had done two actions: (1) it had "erred," which it was not supposed to do, and (2) it had "concluded," which it was supposed to do. To soften the accusation, we could shift the focus to the more acceptable action by making "concluded" the main verb. We would reduce the inappropriate action to the grammatical status of an adjective:

1d. The trial court erroneously concluded that. . . .

This is softer than (1c).

Might there be a situation in which (1d) is still too harsh? If so, to soften it even further, add marshmallow: We could have the court do nothing, by not allowing it to be the grammatical subject. We could put the blame on the "conclusion":

1b. The trial court's conclusion is clearly erroneous. . . .

Let us turn now to the contents of the "that" clause:

. . . that the defendants made full disclosure . . .

Once again the author had failed to communicate to us the action by announcing it in the verb. The defendants did not "make" anything; they "disclosed" something—or failed to disclose it. We can make that action clearer by making it the verb:

1e. . . . that the defendants fully disclosed . . .

If we opt for the strongest version of the initial clause, here is our complete revision:

1f. The trial court clearly erred in concluding that the defendants fully disclosed everything they knew that was relevant to the value of Knaebel's stock.

The concepts communicated by sentence (1f) are not as difficult as they appeared to be in sentence (1a). The sentence no longer seems long, even though it has the same number of words as the original. The big difference: Sentence (1f) does not misuse reader energy by mis-locating its information. To experience how powerful that mis-location can be, read once again the original sentence (1a), noting how difficult the sentence remains, even though we have just spent a great deal of energy contemplating its contents:

1a. The trial court's conclusion that the defendants made full disclosure of all relevant information bearing on the value of Knaebel's stock is clearly erroneous.

As long as we have to wait for the arrival of the verb, we cannot be paying enough appropriate attention to the intervening material.

There are two additional reasons (1f) reads with so much more ease than (1a):

- In (1f), no piece of information arrives for which we are not already somewhat prepared; and
- The arrival of every new word seems to "lean forward" with possibilities as to where we might go from here.

These are two benchmarks of good, clear writing. To demonstrate how these function in sentence (1f), here is a slow-motion replay of how a reader well might experience the interpretive journey:

The trial court . . .
("Well, what did they do ?")
clearly erred . . .
("Made a mess of things, did they? How did they do that?")
in concluding . . .
("In concluding what?")
that the defendants . . .
("And what did they do?")
fully disclosed . . .
("What did they disclose?")
everything they knew . . .
("Knew? About what?")
that was relevant . . .
("Relevant to what?")
to the value of Knaebel's stock.
("Ah, yes.")

Important: I am not suggesting a new rule that we should never interrupt between a subject and its verb. Rather, I am indicating that whenever you do this, the intervening material will be read with far less emphasis. Sometimes that is to be desired.

2a. You may never, except on Sunday, park in the A lot.

2b. You may never park in the A lot, except on Sunday.

Sentence (2a) undercuts the exception; sentence (2b) emphasizes it. Reader expectations should serve you not as rules, but rather as tools. ■

Published in *Litigation*, Volume 39, Number 3, Summer 2013. © 2013 by the American Bar Association. Reproduced with permission. All rights reserved. This information or any portion thereof may not be copied or disseminated in any form or by any means or stored in an electronic database or retrieval system without the express written consent of the American Bar Association.

heinonline.org | holsupport@wshein.com

CITATIONS:

Bluebook 21st ed.
George D. Gopen, Why the Passive Voice Should Be Used and Appreciated- Not Avoided, 40 LITIG. 16 (Winter 2014).

ALWD 7th ed.
George D. Gopen, Why the Passive Voice Should Be Used and Appreciated- Not Avoided, 40 Litig. 16 (2014).

APA 7th ed.
Gopen, G. D. (2014). Why the passive voice should be used and appreciated- not avoided. Litigation, 40(2), 16-17.

Chicago 17th ed.
George D. Gopen. "Why the Passive Voice Should Be Used and Appreciated- Not Avoided." Litigation 40, no. 2 (2014): 16-17. HeinOnline.

McGill Guide 10th ed.
George D. Gopen, "Why the Passive Voice Should Be Used and Appreciated- Not Avoided" (2014) 40:2 Litig 16.

AGLC 4th ed.
George D. Gopen, 'Why the Passive Voice Should Be Used and Appreciated- Not Avoided' (2014) 40(2) Litigation 16

MLA 9th ed.
Gopen, George D. "Why the Passive Voice Should Be Used and Appreciated- Not Avoided." Litigation, vol. 40, no. 2, Winter 2014, pp. 16-17. HeinOnline.

OSCOLA 4th ed.
George D. Gopen, 'Why the Passive Voice Should Be Used and Appreciated- Not Avoided' (2014) 40 Litig 16

Date Downloaded: Sat Dec 6 07:45:56 2025

Source: https://heinonline.org/HOL/Page?handle=hein.journals/laba40&id=86

Terms, Conditions & Use of PDF Document:
Please note, citations are provided as a general guideline. Users should consult their preferred citation format's style manual for proper formatting. Your use of this HeinOnline PDF indicates your acceptance of HeinOnline's Terms and Conditions of the license agreement available at: https://heinonline.org/HOL/License. The search text of this PDF is generated from uncorrected OCR text. To obtain permission to use this article beyond the scope of your license, please use: https://www.copyright.com.

HeinOnline is a product of William S. Hein & Co., Inc. | 2350 North Forest Road, Getzville, NY 14068

On the Papers

WHY THE PASSIVE VOICE SHOULD BE USED AND APPRECIATED—NOT AVOIDED

GEORGE D. GOPEN

The author is Professor Emeritus of the Practice of Rhetoric at Duke University.

Our English teachers taught us to avoid the passive. They said it was weaker and more cumbersome than the more energetic, more compact active voice. That was bad advice. Very bad advice. Lawyers cannot write sophisticated, powerful prose without a skillful use of the passive voice. I could offer you a theological proof: God would not have created the passive had it no use. Or perhaps you might prefer the Darwinian argument: The passive could not have survived unless it was fittest for something. But I prefer this circular reasoning: The passive is better than the active in all cases in which the passive does a better job than the active. It only remains for a writer to recognize those cases and to know how to handle them.

Since grammar is often left untaught, I had better demonstrate the distinction between active and passive. In the active voice, the grammatical subject of the sentence is the agent (the doer) of the action:

Jack loves Jill.

Jack, the subject, does the loving.

To change this to passive, first we make the object (Jill) into the subject. Then we replace the verb (love) with a form of the verb "to be"—in this case "is"—plus a verbal adjective made out of the previous verb—in this case, "loved":

Jill is loved by Jack.

In the passive, the subject is the one acted upon.

What does the passive accomplish for us? It moves the furniture around. It is the feng shui of grammar. Why is that important for us? Readers take most of their clues for interpretation not from word choice but from word placement—from structural location. Where a word appears controls most of what the reader will do with it. When the only way to get the right word into the right place is to use the passive, then we must be thankful for its existence.

Here are the four most important ways in which the passive allows us to communicate far better than the active.

1. Whose Story Is This?

"Jack loves Jill." According to most readers, this is Jack's story. "Jill is loved by Jack." According to most readers, this is Jill's story. Readers expect—even assume—that a clause is the story of whoever or whatever shows up first, as the grammatical subject.

When all we have is Jack, Jill, and their passion, this may not seem a weighty concern. But when legal sentences refer to more information than this, it is another matter altogether. Consider the following set of sentences:

a. Smith had notified Jones on the morning of April 7 concerning the lost shipment.
b. On the morning of April 7, Jones had been informed of the lost shipment by Smith.
c. The lost shipment had been disclosed by Smith to Jones on the morning of April 7.

All three are "correct" and informative sentences, but they "mean" differently. To choose between them, you must not use not your ear but rather your eye and your mind. If you are trying to inform us what Smith did, then your best choice here is (a). If it is Jones's story you wish to tell, choose (b). If the story is intended to focus for the moment on the lost shipment, (c) will do the job best. Getting the right "whose story" into the "whose story" position is essential for clear legal prose. If the only way to do that furniture moving is to use the passive, as in (b) and (c) above, then thank goodness we have the passive.

2. The Passive More Effectively Indicates Passivity

If we are writing the statement of facts for a plaintiff in a torts case, we probably should have a section in which the plaintiff is constantly up front as to whose story it is, with many of the verbs being passive. The plaintiff was "done unto" by the nasty defendant. But in the section that

describes all the terrible things the defendant did, the defendant should constantly be up front, with active verbs showing all the nasty deeds the defendant actively did.

3. Get the Correct Information into the Stress Position

The single most important structural location in a sentence is the stress position, defined as any moment in which the grammatical structure of the sentence comes to a full halt. This happens at every period, but it also happens at any properly used colon or semicolon. Those are the moments when readers tend to summon extra emphasis. Putting the most important information elsewhere than in a stress position is the single most prevalent problem in legal writing today. If the passive is the only or the easiest or the best way to get the important words to the end of the sentence or just before a colon or semicolon, then thank goodness for the passive.

For an example, here is a set of facts:

- Jones made false representations to Smith about a piece of property in which Smith had a substantial interest.
- As a result of those false representations, Smith ceded his interest in the property.

Let us say we have been telling Smith's story for several sentences: Smith did this—Smith did that—and Smith did this other thing. Now is the appropriate moment for us to tell about his giving up his interest in the property; but more important to us than the ceding itself is our opportunity to point the finger at the villainous Jones. Which of these sentences would do the best job for us at this crucial moment?

1. By these false representations, Jones tricked Smith into ceding his interest in the property.
2. Because Smith believed Jones, he ceded his interest in the property.
3. These false representations by Jones led Smith to give up his interest in the property.
4. Smith was convinced to cede his interest in the property by the false representations of Jones.

All four of these sentences are "correct" English. They all sound fine. We cannot pick a winner by using the ear. Once again, we have to use the eye and the mind. The first three are in the active; the fourth is in the passive. If we want to continue the long-standing story of Smith and wind up pointing the finger of accusation at Jones, then sentence (4), despite its passive construction, will do by far the best job. Smith is once again in the "whose story" position, since this continues to be Smith's story; but the emphasis provided by the stress position turns the reader's attention, with energy, to the false representations of Jones. We could not have accomplished that without the passive. All the other sentences are good sentences, but they do not serve our present purpose as well.

4. Use the Passive to Get Rid of Agency

In English, there are two main ways of ridding a sentence of agency—of stating who did the action. One is nominalization—making the verb into a noun. Here is an active sentence:

1. We predicted a 4 percent rise in production.

"We" is the agent. To get rid of "us," make the verb "predicted" into a noun.

2. The prediction was for a 4 percent rise in production.

The agent has disappeared.

The only other way to rid a sentence of agency is to use the passive:

3. A 4 percent rise in production was predicted.

When you wish to get rid of agency, I urge you to avoid nominalization and use instead the passive. By using the passive, you retain the announcement of the action in the verb, which is where readers expect to find it. If you give sentence (2) to 12 readers, they will vary in their interpretations: Four are likely to judge it to be featuring the action of "predicting"; four are likely to say it is featuring the production "rising"; and four others might swear that it is stressing "producing." Give sentence (3) to the same 12 readers, and 11 or 12 will say it is emphasizing the "predicting." Sentence (3) will be by far the best if the next sentence focuses on the prediction: "That prediction turned out to be inaccurate. . . ."

Our English teachers have always taught us that to produce clear, forceful, communicative prose, we must constantly avoid the passive. It is perhaps the single worst idea we teach about the English language. It is impossible to write sophisticated legal prose about complex matters without skillfully employing the passive voice. With it, we can change the location of particular pieces of information so that they appear in the structural locations in which readers expect to find those pieces of information. Taken together, those locations control how readers go about reading. The action of a sentence is expected to be announced by the verb. The perspective of the action—whose story the sentence is meant to be—is expected to be revealed by whoever or whatever is the grammatical subject of the main clause. The most important piece of information—to be read with greater emphasis than all the other information—is expected to appear at the moment or moments of full grammatical closure, signaled by the presence of a colon, semicolon, or period. These are the concerns that control the interpretive process of most readers of English.

If the only way we can get the right information into the right places is to use the shape-changing passive voice, then thank goodness—or God, or Darwin—for the passive. ■

heinonline.org | holsupport@wshein.com

CITATIONS:

Bluebook 21st ed.
George D. Gopen, The Number Two Problem in Legal Writing: Solved, 40 LITIG. 21 (Summer 2014).

ALWD 7th ed.
George D. Gopen, The Number Two Problem in Legal Writing: Solved, 40 Litig. 21 (2014).

APA 7th ed.
Gopen, G. D. (2014). The number two problem in legal writing: solved. Litigation, 40(4), 21-22.

Chicago 17th ed.
George D. Gopen. "The Number Two Problem in Legal Writing: Solved." Litigation 40, no. 4 (2014): 21-22. HeinOnline.

McGill Guide 10th ed.
George D. Gopen, "The Number Two Problem in Legal Writing: Solved" (2014) 40:4 Litig 21.

AGLC 4th ed.
George D. Gopen, 'The Number Two Problem in Legal Writing: Solved' (2014) 40(4) Litigation 21

MLA 9th ed.
Gopen, George D. "The Number Two Problem in Legal Writing: Solved." Litigation, vol. 40, no. 4, Summer 2014, pp. 21-22. HeinOnline.

OSCOLA 4th ed.
George D. Gopen, 'The Number Two Problem in Legal Writing: Solved' (2014) 40 Litig 21

Date Downloaded: Sat Dec 6 07:38:58 2025

Source: https://heinonline.org/HOL/Page?handle=hein.journals/laba40&id=235

Terms, Conditions & Use of PDF Document:
Please note, citations are provided as a general guideline. Users should consult their preferred citation format's style manual for proper formatting. Your use of this HeinOnline PDF indicates your acceptance of HeinOnline's Terms and Conditions of the license agreement available at: https://heinonline.org/HOL/License. The search text of this PDF is generated from uncorrected OCR text. To obtain permission to use this article beyond the scope of your license, please use: https://www.copyright.com.

HeinOnline is a product of William S. Hein & Co., Inc. | 2350 North Forest Road, Getzville, NY 14068

On the Papers

THE NUMBER TWO PROBLEM IN LEGAL WRITING: SOLVED

GEORGE D. GOPEN

The author is Professor Emeritus of the Practice of Rhetoric at Duke University, Durham, North Carolina.

The number one problem in legal writing in this country, which afflicts more than 90 percent of legal writers, is the failure to place the most important information in the sentence's stress position. The stress position is any moment of full syntactic closure—signaled by the presence of a period or a properly used colon or semicolon. For a fuller discussion on the stress position, see my earlier article in this series, *The Importance of Stress: Indicating the Most Important Words in a Sentence*, LITIGATION, Vol. 38, No. 1 (Fall 2011), at 20–21. Failing to place the material to be emphasized in a stress position will disguise its importance far more often than one might imagine.

The number two problem, discussed below, is a subset of the number one problem. Readers get reading instructions from a writer not only by structural locations like stress positions but also by the "weight" of the kind of unit of discourse in which information appears. Although that might sound too technical for a nonspecialist in language to understand, it is not. You will understand it by the end of this article.

A "unit of discourse" is a group of words that has a beginning and an ending. Thus, a phrase, a clause, a sentence, a paragraph, or a whole document are all units of discourse—of different sizes, shapes, and functions. Our grammar teachers in high school tried to teach us about many sentence-level units of discourse. Their efforts, and ours in trying to learn the material, were sadly wasted. You may have struggled with trying to understand the difference between a compound clause, a complex clause, and a compound-complex clause. Forget it. None of that information is of any help in writing. You need to know about only three units of discourse:

1. The "main clause." It has a subject and a verb and can stand by itself as a sentence.
2. The "qualifying clause." It has a subject and a verb but cannot stand by itself as a sentence—usually because it starts with a word like "that" or "although."
3. The "phrase." Although recognizable as a unit, it lacks either or both a subject and a verb.

It is essential to know the difference between these three because readers value the information in a phrase much less than the information in a qualifying clause; and they value the information in a qualifying clause much less than the information in a main clause. If a writer puts the most important information in any unit other than a main clause, the reader may well not perceive its importance.

The number two problem in legal writing is simply this: In creating a sentence with two or more clauses, lawyers tend to start with a main clause and end with a qualifying clause.

MAIN CLAUSE [comma], QUALIFYING CLAUSE [period].

The problematic moment for the reader occurs at the comma that follows the main clause. At this moment, the reader is receiving conflicting instructions from the writer:

Instruction No. 1:

Dear reader, this is a main clause. Thus, the information in it is meant to be considered of the utmost importance. Emphasize it.

Instruction No. 2:

Dear reader, this comma tells you there is no stress position here. Thus, you should not read the previous information as containing anything of utmost importance.

Which of these conflicting messages is the reader to rely on?

At that precarious moment of encountering the comma, readers are faced with a number of interpretive choices:

(a) Emphasize something in that first clause. (But then the reader would have to decide *which* piece of information to weigh most heavily.)
(b) Do not emphasize anything here; wait instead for the emphasis to be provided by the period at the end of the sentence.
(c) Delay the decision concerning emphasis until the rest of the information in the sentence has been encountered. (But then the reader will have to revisit the whole sentence retroactively. Once the reader travels backward, the writer is in trouble.)

Why is this problem so widespread? Until we were about 16, most of our sentences contained only a single clause. We had gradually constructed a sentence-writing machine in our brain that functioned like this: "To write a sentence, first choose a subject; then choose a verb; then unravel your complement; then end with a period."

When we went to college, we were handed reading assignments, in all disciplines, written by professional authors. We noticed that all these important people sounded different from us—for two main reasons: (1) They used many hard words unknown to us; and (2) their sentences extended at least twice as long as ours did. (Professionals tend to use multi-clause sentences about 50 percent of the time.) We knew we should begin to use some of those hard words ourselves; and we tried to sound more professional by extending the length of our sentences.

Writing those college papers, we quite naturally relied on our long-trusted sentence-writing machine. But our wish to create longer sentences caused the machine to malfunction: "Choose a subject; choose a verb; unravel your complement; end with a period—wait! No! Insert a comma, and keep on going." Because for so long beginning a sentence was the same for us as beginning a main clause, we persisted in beginning our sentences in that old, now unhelpful way. We still do. We had no idea it was going to cause such problems for our readers.

Here is an example. We begin with sentence (1a), a long but perhaps unproblematic sentence.

1a. Although the plaintiff had sent several notices about the necessity of delaying the shipment, three of them in January alone, the defendant persisted in promising its customers the inventory would be available as previously scheduled.

The "although" clause is a qualifying clause; "three of them in January alone" is a phrase; and the rest of the sentence, beginning with "the defendant," is a main clause. Most readers will read this sentence with the greatest emphasis on the main clause—in part because of its status as a main clause, and in part because it contains the sentence's only stress position.

The qualifying clause, concerning the plaintiff's actions, will be read with some weight; but that weight will be in support of the later arrival of the information in the main clause.

Because the fact that three notices were sent in January exists only as a phrase, most readers will consider it not to be the sentence's most important information.

If that interpretation is what the writer intended, all is well. But if the writer intended us (e.g.) to give equal weight to the plaintiff's actions, this sentence would fail to send the proper reading instructions. The solution would be to give both the defendant's and the plaintiff's actions equal structural weight—by making them both main clauses:

1b. The plaintiff had sent several notices—three of them in January alone—about the necessity of delaying the shipment. Despite this, the defendant persisted in promising its customers the inventory would be available as previously scheduled.

Version (1c), which follows, is revised to create the number two problem in legal writing: It begins with the main clause and ends with a weaker unit of discourse:

1c. The defendant persisted in promising its customers the inventory would be available as previously scheduled, even though the plaintiff had sent several notices about the necessity of delaying the shipment, three of them in January alone.

All the same information is present in (1c) as in the original version. The writer knows exactly how much emphasis the reader is intended to exert in reading all three main pieces of information; but the reader has to figure out that important matter of emphasis by guessing. Read (1c) again, as if the defendant's actions were the most important. It can be done. But read it yet again, this time assuming the plaintiff's actions are to be most highly emphasized. Again, it can be done. Reread it a third time, emphasizing the three notices in January as the most important information. Again, it can be done. So with sentence (1c), we still have all the information; but we lack an instructor's manual for how to read it. That manual should be provided by the sentence's structure.

To solve the number two problem in legal writing, become aware of when the unit of discourse you are composing is a main clause, or a qualifying clause, or just a phrase. Put the most important material in the main clause; and, as often as possible, give that main clause a mark of punctuation—period, colon, or semicolon—that will create for it a stress position. Sometimes you'll find yourself moving that main clause to the end. Sometimes you'll find yourself reaching for that salt shaker full of colons or that pepper shaker full of semicolons.

Problem solved.

I will go into these solutions in greater detail in the next issue of LITIGATION. ■

On the Papers

THE PROGRESS OF THOUGHT: TO MOVE FORWARD, LINK BACKWARD

GEORGE D. GOPEN

The author is Professor Emeritus of the Practice of Rhetoric at Duke University.

When a writer is in the process of writing, no matter how long or short the document will eventually be, most of the writer's attention is focused on the creation of a single sentence. Once the sentence's contents have been deposited on the page, without error, and with some sense of elegance, the writer can comfortably consider that task well accomplished. The same process can continue, sentence after sentence.

For a reader, however, the primary unit of thought is not the sentence but rather the paragraph. Readers do not experience sentences in isolation from one another, but rather in a flow that begins with the paragraph's opening sentence and continues until the paragraph ends. Without explicit instructions from the writer on how to link these sentences together, 10 readers might well come away from the paragraph with 10 or more different interpretations. It is a crucial part of the writing act to send those instructions for logical connection as soon and as clearly as possible. This article attends to the instructions that help a reader connect a new sentence to the one that preceded it.

Without those early instructions, bad things can happen.

1. Imagine you have just finished reading a sentence that contained seven major bits of information, represented here as A B C D E F G .

The next sentence could connect backward in a great variety of ways:

- to any one of the seven individual bits of information;
- to any combination of two or more (AB, BC, DEF, and so forth); or
- to a concept not made explicit by any single previous element, but suggested by a combination of them.

As the reader, you begin the next sentence, eager to know—needing to know—what this backward connection will be. Without it, you will have trouble knowing what to do with the new sentence's contents. But the first bit of information you encounter is Q. Q? There was no Q in the previous sentence. You move on; but what if next you find R. R? That doesn't help. And then you find S. By this time, you have so much new material to deal with, you have to give up the attempt to make the backward connection. Making sense of this sentence by itself will be success enough; but your attempt to follow the writer's thought progression has been severely compromised.

2. The second bad possibility is even worse. Using sentence example ABCDEFG, let us say that the author wants us to continue forward with G; but not knowing anything about how readers link backward, the author begins the new sentence by mentioning B. Disaster. The reader, seeing B, makes a link backward to the previous sentence's B and is now on the wrong track forward. Once such a mistaken connection is made, it is difficult to undo its damage.

Readers need to know as soon as possible how a new sentence is intended to link back to its predecessor. If you tell them, explicitly, as soon as possible, their train of thought will stay on the tracks you intended.

To explore the problems and solutions involved with this backward link, let us consider a sentence from Chief Justice Warren's majority opinion in the *Miranda* case:

> The use of physical brutality and violence is not, unfortunately, relegated to the past or to any part of the country.

Miranda v. Arizona, 384 U.S. 436.

There are many linkage possibilities for continuing forward from this sentence, even though it contains only 21 words. The next sentence could hark back to any one of or any combination of the following terms:

- "physical"
- "brutality"
- "violence"
- "unfortunately"

Published in *Litigation*, Volume 42, Number 2, Winter 2016. © 2016 by the American Bar Association. Reproduced with permission. All rights reserved. This information or any portion thereof may not be copied or disseminated in any form or by any means or stored in an electronic database or retrieval system without the express written consent of the American Bar Association.

- "relegated"
- "the past"
- "any part of the country"

Here is the beginning of a number of different sentences that could logically follow the sample sentence:

- Mental brutality and violence can often follow, . . .
- Such physical brutality has pervaded police investigations . . .
- Equally unfortunate, courts have long ignored . . .
- All the way back to the era of the Pilgrims, . . .
- Only recently in Kings County, New York, the police . . .

Or the new sentence might strike out in a direction not charted by any single word in the sample sentence:

> To date, there has been no outraged public outcry demanding . . .

Any of these are possible and intelligible.

If the new sentence begins with something not appropriately connectable, readers are left to their own devices to create a linkage—one that may or may not be what the writer had in mind. How would you stay on track if the new sentence began with "The presence of an attorney . . ."?

But even worse than not knowing what the link should be is to have the new sentence begin with something *not* intended to be the link. Readers will make that linkage with the first piece of information capable of it. Because readers are going to make that connection whether you like it or not, give them the correct backward link as near to the beginning of every sentence as is possible.

Here is what Chief Justice Warren wrote:

> The use of physical brutality and violence is not, unfortunately, relegated to the past or to any part of the country. Only recently in Kings County, New York, the police brutally beat, kicked and placed lighted cigarette butts on the back of a potential witness under interrogation for the purpose of securing a statement incriminating a third party.

Miranda, 384 U.S. at 446.

He connected backward to both "the past" and "any part of the country." The connection works and is easy to follow because the target words came at the end of the previous sentence. They were the last thing on the reader's mind; and they occupy what I call "the stress position"—the moment of syntactic closure that invites readers to exert extra emphasis. (For more on the stress position, see *The Importance of Stress: Indicating the Most Important Words in a Sentence*, 38 LITIG, no. 1 (Fall 2011), at 20).

But a new sentence cannot always take off from where the last sentence ended. Were that a hard and fast rule of composition, writers would never be able to spend more than one sentence on a given story. The new sentence might need to continue the story that was being told by its predecessor. Because a sentence tends to be read as the story of whoever or whatever was the grammatical subject of its main clause, that previous subject is an equally viable and readable candidate for the new sentence's backward link.

Here is our example again, expanded to include the two sentences that preceded it:

> In a series of cases decided by this Court long after these studies, the police resorted to physical brutality—beating, hanging, whipping—and to sustained and protracted questioning incommunicado in order to extort confessions. The Commission on Civil Rights in 1961 found much evidence to indicate that "some policemen still resort to physical force to obtain confessions." The use of physical brutality and violence is not, unfortunately, relegated to the past or to any part of the country. Only recently in Kings County, New York, the police brutally beat, kicked and placed lighted cigarette butts on the back of a potential witness under interrogation for the purpose of securing a statement incriminating a third party.

Miranda, 384 U.S. at 446.

This is relatively clear prose. We could improve it by making two changes to the sentence citing the 1961 study: (1) Make it the story of "some policemen," which would make it the backward link (there was no "Commission" in the previous sentence); and (2) end the sentence with "physical force," which makes it easily available as the target of the next sentence's backward link:

> As the Commission on Civil Rights in 1961 found quite rampant, police often obtain confessions by resorting to physical force.

Once we have done that, we note that the only new information in this sentence is the citation of the 1961 report. Why waste a whole sentence on that? The solution: Just cite the report. The resulting paragraph:

> In a series of cases decided by this Court long after these studies, the police resorted to physical brutality—beating, hanging, whipping—and to sustained and protracted questioning incommunicado in order to extort confessions. (Report of the Commission on Civil Rights, 1961.) The use of physical brutality and violence is not, unfortunately, relegated to the past or to any part of the country. Only recently in Kings County, New York, the police brutally beat, kicked and placed lighted cigarette butts on the back of a potential witness under interrogation for the purpose of securing a statement incriminating a third party.

The backward-linking connections are made up front targeting either the "whose story" or the stress position of the previous sentences. Linking backward moves your reader forwards. Thought flows. ■

Published in *Litigation*, Volume 42, Number 2, Winter 2016. © 2016 by the American Bar Association. Reproduced with permission. All rights reserved. This information or any portion thereof may not be copied or disseminated in any form or by any means or stored in an electronic database or retrieval system without the express written consent of the American Bar Association.

heinonline.org | holsupport@wshein.com

CITATIONS:

Bluebook 21st ed.
George D. Gopen, a Quiver of Punctuation: How to Handle Two Clauses in One Sentence, 45 LITIGATION 15 (Fall 2018).

ALWD 7th ed.
George D. Gopen, a Quiver of Punctuation: How to Handle Two Clauses in One Sentence, 45 Litigation 15 (2018).

APA 7th ed.
Gopen, G. D. (2018). quiver of punctuation: how to handle two clauses in one sentence. Litigation, 45(1), 15-17.

Chicago 17th ed.
George D. Gopen. "a Quiver of Punctuation: How to Handle Two Clauses in One Sentence." Litigation 45, no. 1 (2018): 15-17. HeinOnline.

McGill Guide 10th ed.
George D. Gopen, "a Quiver of Punctuation: How to Handle Two Clauses in One Sentence" (2018) 45:1 Litigation 15.

AGLC 4th ed.
George D. Gopen, 'a Quiver of Punctuation: How to Handle Two Clauses in One Sentence' (2018) 45(1) Litigation 15

MLA 9th ed.
Gopen, George D. "a Quiver of Punctuation: How to Handle Two Clauses in One Sentence." Litigation, vol. 45, no. 1, Fall 2018, pp. 15-17. HeinOnline.

OSCOLA 4th ed.
George D. Gopen, 'a Quiver of Punctuation: How to Handle Two Clauses in One Sentence' (2018) 45 Litigation 15

Date Downloaded: Sat Dec 6 07:57:06 2025

Source: https://heinonline.org/HOL/Page?handle=hein.journals/laba45&id=16

Terms, Conditions & Use of PDF Document:
Please note, citations are provided as a general guideline. Users should consult their preferred citation format's style manual for proper formatting. Your use of this HeinOnline PDF indicates your acceptance of HeinOnline's Terms and Conditions of the license agreement available at: https://heinonline.org/HOL/License. The search text of this PDF is generated from uncorrected OCR text. To obtain permission to use this article beyond the scope of your license, please use: https://www.copyright.com.

HeinOnline is a product of William S. Hein & Co., Inc. | 2350 North Forest Road, Getzville, NY 14068

On the Papers

A QUIVER OF PUNCTUATION: HOW TO HANDLE TWO CLAUSES IN ONE SENTENCE

GEORGE D. GOPEN

The author is Professor Emeritus of the Practice of Rhetoric at Duke University.

Almost none of us were taught how to deal with two clauses in the same sentence. The reason is clear enough: At the age when we were still young enough to be taught writing, we were not yet intellectually developed enough to have a need for multi-clause sentences; but by the time we had matured enough to have complex thoughts, there was no one around to teach us how to deal with complex writing.

A writer's lack of control over multi-clause sentences will, over the course of a whole document, slowly fatigue and mystify a reader. While the text might be error-free and the words legally appropriate, something else will be constantly numbing the reader. Legal readers have long accepted the sad news that legal writing *must*, by the nature of the subject matter, be difficult to process. But that sad news is bad news: Legal prose can flow and shine if the writer knows how to send the correct reading instructions, letting readers know how the moving parts are intended to be coordinated. Many of those instructions have to do with punctuation.

We were taught to fear punctuation: Those marks were the dots and squiggles that we could get *wrong*, invoking teacher's disapproval. They set us all aquiver. They seemed to have a life of their own, in which we played the role of indentured servants. It should have been otherwise: We should have been taught to regard the punctuation marks as tools with which we can control how readers will go about making sense of our prose. In our struggle to conquer the art of communication, we should have been taught to consider those punctuation marks as arrows in our rhetorical quiver. Punctuation, if effectively used, tells readers how to solve two constantly recurrent interpretive problems: (1) which words should they be reading with extra emphasis because of their importance; and (2) how they ought to connect two clauses in the same sentence to each other. This article offers solutions to both of those problems—problems that afflict almost all legal writers.

How can a writer indicate to a reader which words in a sentence to emphasize the most? It would be nice, would it not, if we could print the most important words in red: then everyone (except the colorblind) would see the red words approaching, would crescendo to them as a climax, and then decrescendo to the end of the sentence. But the powers that be won't let us print things in red on a regular basis. However, we have something just as good: It has to do with location. Readers naturally tend to stress any material that arrives just as the grammatical structure of the sentence comes to a full halt. That halt occurs at the arrival of any properly used period, colon, or semicolon. (It can never occur at a comma.) I call that location a "stress position." Punctuation marks are reading instructions: These three (. : ;) instruct readers to stress the words that directly precede them.

That is the first of our two problems. On to the second, which I call "the main clause first" problem. As we shall see, any sentence that begins with a main clause that has no period, colon, or semicolon at its end causes interpretive problems for the reader. Punctuation informs readers what kind of connections to make between two clauses.

In case your school did not teach grammar, let me define some important grammatical terms: (1) A "clause" contains a subject and verb; (2) a "main clause" is one that can stand by itself as a sentence; (3) any clause that cannot stand by itself as a sentence I call a "qualifying clause." The distinction is important: Readers value the information in a main clause more than the information in a qualifying clause.

I present here a typology of two-clause sentences that should take care of 95 percent of your two-clause needs. It addresses both problems—the stress position problem and the main clause first problem.

In these examples, gathered at random from legal texts, I am taking over the role

of the author. As a result, I know what the sentence is intended to mean. If you come up with some alternate meaning, you are wrong. I am the author. I know what I intended to say. But it's my fault, not yours.

Here are examples of four types of two-clause sentences, all sounding long and burdensome. Their length turns out not to be the problem; rather, the problem is their grammatical structure. (The main clause is printed in italics.) The (a) versions of the four examples present four different types of problems; the (b) versions attempt to solve them—without decreasing length by a single word.

Type 1 Example

1a. *Since this is inevitably so, it is obvious that we can formulate no definite rules,* but we should be sure to mention some frequently occurring and significantly limiting factors.

What, aside from its seeming lengthiness, is the problem with this example sentence? The first clause (printed in italics) is a main clause: It can stand by itself as a sentence. At the end of this clause, the reader is challenged by a difficulty that almost no one recognizes consciously but by which almost everyone feels confused. In ending the main clause with a comma, I, as author, have sent the reader two conflicting instructions: (1) This is a main clause, which, because it could stand by itself as a sentence, clearly contains something stress-worthy—so please stress something; and (2) there is no stress position here, because a comma is incapable of producing one—so don't stress anything. There you have it—one instruction invites you to stress something, and the other forbids it.

What to do? It is now up to the readers to decide on their own whether or not to stress something in this first clause. That in turn means that the readers' minds must now be traveling backwards to review *how* to "perform" that first clause. Which of these—or which combination of these—should be stressed—"inevitably so"? "obvious"? "no definite rules"?—or, as the comma instructs us, none of the above? This is the problem I refer to as "main clause first."

As the author, I am rereading this sentence to determine whether it is in need of revision. I decide that I had not done the job well. I now think that the first clause needs a stress position for "no definite rules" and that the second clause attends to an altogether separate matter. How, then, can I send *both* these instructions to my readers with security and ease?

All I need do is pull from my punctuation quiver a mark that solves both problems. We call that mark a "period." Watch:

1b. *Since this is inevitably so, it is obvious that we can formulate no definite rules.* However, we should be sure to mention some frequently occurring and significantly limiting factors.

Both the (a) and (b) versions contain 29 words; but the burden on the reader has been lifted. We stress "no definite rules"; and we take a fresh breath before dealing with the "however" clause.

Type 2 Example

(Fact situation: A boat-owning defendant has damaged a dock-owning plaintiff's property in a storm to avoid the boat being destroyed.)

2a. *These factors often have a bearing on the solution*, for example, when it is clear that the innocent promisee need not sacrifice compelling interests of his own to reduce the defaulter's loss.

Once again, this (a) version seems long and burdensome. Once again, the first clause is a main clause—with no punctuation at its end to create a stress position. Though this may seem the same problem as type 1, it is not.

As author, in reviewing my sentence, I realize that I wanted a reader to stress something in the first clause. I also perceive that the two clauses relate to each other by the second one providing an

Illustration by Lisa Haney

example of the first. In such a case, how can I signal both of these things to my readers? Again I need only a single mark of punctuation—the colon. A colon promises that the rest of this sentence will either exemplify the first half or restate it.

2b. *These factors often have a bearing on the solution*: Such is the case when it is clear that the innocent promisee need not sacrifice compelling interests of his own to reduce the defaulter's loss.

Now readers know to stress "a bearing on the solution." Now readers know to expect a restatement or an example.

Type 3 Example

(The fact situation is the same as above.)

3a. *This is not a case where, because of an act of God, the infliction of the injury was beyond the control of the defendant,* but is one where the defendant prudently availed himself of the plaintiff's property for the preserving of his own, more valuable property.

Similar to the previous examples, this one, again long and unwieldy, begins with a main clause that does not end in a stress position—again producing the "main clause first" problem. Again, in reviewing my sentence, I decide that the first clause is indeed in need of a stress position. In addition, I recognize the relationship between the two clauses: They are part one and part two of a two-part thought. Part one requires a stress position; but it must be kept in mind while the reader reads part two, in order for the two-part sentence to make sense as a whole. How can I sure-handedly signal these two instructions to my readers? Again, a single mark of punctuation comes to the rescue—the semicolon:

3b. *This is not a case where, because of an act of God, the infliction of the injury was beyond the control of the defendant;* but it is one where the defendant prudently availed himself of the plaintiff's property for the preserving of his own, more valuable property.

Can you see how that semicolon creates a stress position for the first clause *and* allows us to refuel for the sentence's second half? Note that the second clause has to be upgraded to the status of main clause, allowing each half of the sentence to stand as a completed partial thought. The sentence as a whole is the sum total of the way these two main clauses, each with its own stress position, combine to produce a single, complex thought.

Type 4 Example

4a. *It is true, as said in Loomis v. Terry [cite], "the business of life must go forward,"* but the means by which it is carried forward cannot be rendered absolutely safe.

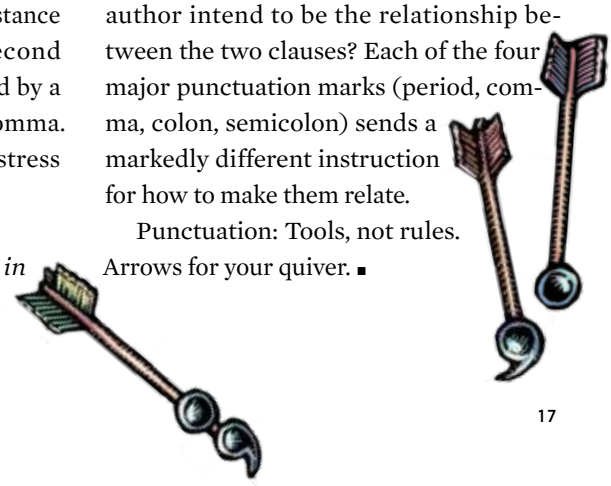
In reviewing my sentence (4a), I decide that these two clauses are not of equal importance: The first clause—here a main clause—exists merely to be in support of the second clause. I had deposited the main point in the second, weaker structure—the qualifying clause, which cannot stand by itself as a sentence. How can I inform my readers *not* to stress anything in the first clause? How can I instruct them to use the substance of that first clause as *context* and forward-leaning support for the more important information in the second clause? How can I instruct my readers that the most important substance in this sentence resides in its second clause? Again, the problem is solved by a single mark of punctuation—the comma. Recall that commas cannot create stress positions.

4b. *Although it is true, as said in Loomis v. Terry [Cite], "the business of life must go forward,"* the means by which it is carried forward cannot be rendered absolutely safe.

Note that the first clause has been demoted from a main clause to a qualifying clause, which now therefore leans forward. Note that the second clause, which in the original version was a qualifying clause (because it started with the word "but") is now promoted to being a main clause. The comma tells us not to stress anything in the first clause; it also instructs us that the upcoming, more important main clause will contain the most stress-worthy information.

Consider the above four examples as a typology. Note that each of the (a) versions begins with a main clause followed by a comma; producing in each case the "main clause first" problem of conflicting instructions for the reader—"stress something" versus "don't stress anything." I am struck by the elegance of the combined solutions to the problems presented by these four examples: Together, they make use of the four major marks of punctuation in the English language—period, colon, semicolon, and comma. With them, properly used, you can send clear reading instructions that answer both of the perplexing questions your readers will encounter when trying to handle two clauses in the same sentence: (1) Does the clause you are reading contain material to which you should be giving extra emphasis, giving stress? For clauses containing a stress position, indicated by the presence of a period, colon, or semicolon, the answer is yes. For a clause ending with a comma, the answer is no. And (2) What did the author intend to be the relationship between the two clauses? Each of the four major punctuation marks (period, comma, colon, semicolon) sends a markedly different instruction for how to make them relate.

Punctuation: Tools, not rules. Arrows for your quiver. ■



heinonline.org | holsupport@wshein.com

CITATIONS:

Bluebook 21st ed.
George D. Gopen, A Once Rogue Punctuation Mark Gains Respectability: What You Can Now Accomplish with an Em Dash, 46 LITIGATION 13 (Fall 2019).

ALWD 7th ed.
George D. Gopen, A Once Rogue Punctuation Mark Gains Respectability: What You Can Now Accomplish with an Em Dash, 46 Litigation 13 (2019).

APA 7th ed.
Gopen, G. D. (2019). once rogue punctuation mark gains respectability: what you can now accomplish with an em dash. Litigation, 46(1), 13-14.

Chicago 17th ed.
George D. Gopen. "A Once Rogue Punctuation Mark Gains Respectability: What You Can Now Accomplish with an Em Dash." Litigation 46, no. 1 (2019): 13-14. HeinOnline.

McGill Guide 10th ed.
George D. Gopen, "A Once Rogue Punctuation Mark Gains Respectability: What You Can Now Accomplish with an Em Dash" (2019) 46:1 Litigation 13.

AGLC 4th ed.
George D. Gopen, 'A Once Rogue Punctuation Mark Gains Respectability: What You Can Now Accomplish with an Em Dash' (2019) 46(1) Litigation 13

MLA 9th ed.
Gopen, George D. "A Once Rogue Punctuation Mark Gains Respectability: What You Can Now Accomplish with an Em Dash." Litigation, vol. 46, no. 1, Fall 2019, pp. 13-14. HeinOnline.

OSCOLA 4th ed.
George D. Gopen, 'A Once Rogue Punctuation Mark Gains Respectability: What You Can Now Accomplish with an Em Dash' (2019) 46 Litigation 13

Date Downloaded: Sat Dec 6 07:58:18 2025

Source: https://heinonline.org/HOL/Page?handle=hein.journals/laba46&id=15

Terms, Conditions & Use of PDF Document:
Please note, citations are provided as a general guideline. Users should consult their preferred citation format's style manual for proper formatting. Your use of this HeinOnline PDF indicates your acceptance of HeinOnline's Terms and Conditions of the license agreement available at: https://heinonline.org/HOL/License. The search text of this PDF is generated from uncorrected OCR text. To obtain permission to use this article beyond the scope of your license, please use: https://www.copyright.com.

HeinOnline is a product of William S. Hein & Co., Inc. | 2350 North Forest Road, Getzville, NY 14068

heinonline.org | holsupport@wshein.com

AI SUMMARY:

A Once Rogue Punctuation Mark Gains Respectability: What You Can Now Accomplish with an Em Dash

Litigation, Vol. 46, Issue 1 (Fall 2019), pp. 13-14
Gopen, George D. (Cited 145 times)
46 Litigation 13 (2019-2020)

Central Thesis:
The article explores the evolution and modern utility of the em dash in formal writing, arguing that it has transitioned from a once-stigmatized mark of informality to a powerful tool for legal and academic writers. The author identifies three primary uses of the em dashâ€"structuring lists, interrupting sentences, and emphasizing sentence endingsâ€"and advocates for its strategic use to enhance clarity and reader engagement. The analysis draws parallels between the em dash's acceptance and the process of legislative evolution, emphasizing that effective writing rules emerge from established practices rather than imposed dictates.

Legal/Academic Issues Addressed:
- The historical stigma and modern acceptance of the em dash in formal discourse.
- The challenge of teaching and standardizing punctuation rules in legal writing.
- The importance of aligning punctuation with reader expectations and stress positions in sentences.

Methodologies/Data Sources:
- Historical analysis of the em dash's evolution in formal writing.
- Comparative discussion of punctuation rules and their application in legal contexts.
- Practical examples and demonstrations of the em dash's uses in lists, interruptions, and sentence endings.

Findings/Analysis:
- The em dash provides three distinct functions: structuring lists, interrupting sentences, and emphasizing sentence endings.
- It offers subtle but effective reader instructions, differing from parentheses in its ability to elevate rather than diminish importance.
- Current grammar books often fail to account for the em dash's separation function, particularly regarding spacing.

Recommendations/Implications:
- Legal writers should adopt the em dash as a tool for enhancing clarity and reader engagement.
- Punctuation rules should evolve to reflect practical usage and reader expectations.

- Advocacy is needed to challenge outdated formatting conventions, such as the spacing around em dashes.

Disclaimer: This summary was automatically generated on November 26, 2025, using HeinOnline's proprietary AI technology. It is intended to provide a general overview of the article's content and may not fully reflect its nuances or arguments. We welcome your feedback to help us continue improving this feature.

On the Papers

A ONCE ROGUE PUNCTUATION MARK GAINS RESPECTABILITY: WHAT YOU CAN NOW ACCOMPLISH WITH AN EM DASH

GEORGE D. GOPEN

The author is Professor Emeritus of the Practice of Rhetoric at Duke University.

An em dash — a double-length hyphen, taking up as much width as the letter *M* — was once considered as shameful a sin in formal discourse as slang or contractions. When I was attending the once-and-still-wondrous Roxbury Latin School (founded in 1645), some 60 years ago, had I used this hyper-hyphen punctuation mark (see the previous sentence for an example of a pair of them at work), I would have been sent straightaway to the headmaster's office to be reprimanded for my act of moral turpitude. I might as well have slapped the English master in the face. All that has changed now; but it took a good long time to change. This On the Papers essay explains both how it happened and what excellent use you can make of this new best punctuational friend.

(Historical note: The worst four-letter word my classmates and I could ever have used in a writing assignment was "ain't," it being both slang and a contraction.)

The em dash has been nurtured in formal prose for a long enough time that we can now announce rules for its usage. While many grammarians love rules for the sake of order, and have their red pens always at the ready to quell disorder, I rejoice when a new arrival like the em dash gives writers better ways to send interpretive signals to their readers.

Successful new rules for writing come about in much the same way as successful legislation happens. We have long learned that it often does not work well to formulate legislation in order to change people's behavior. The most glaring example is our 14-year experiment with Prohibition. No, laws work better when they simply articulate and codify what public behavior has already become. Enough traffic accidents at a given intersection may lead to the insertion of a new traffic light.

The em dash started to creep into use, to my memory, in the late 1960s, that era when all sorts of disregard for authority became matters of public behavior. Fiction writers were allowed to get away with them, especially in passages of dialogue, as they looked to approximate stylistic reality. Journalists found good reasons to include them. Without anyone particularly noticing it, form followed function: As certain things became useful, they slowly assumed a rightful place in writing. When grammar books started taking note (and you can check this out on the internet's definitions of the em dash even today), the newfound usage was merely considered a victory for informality over formality. Actually, it has become far more than that.

Haydn, Mozart, and Beethoven all used the same kind of progression of materials in their music when writing many of the brisk, major movements in symphonies and sonatas. They had no name for it: It just worked well for them. Years later, composers and musicologists gave that form a name — sonata allegro form — and disquisissed at length about its rules. It is now time for us to look back at how the em dash has been used and articulate the three helpful things we can now do with it.

Lists

The first concerns the formation of lists. We used to have an extraordinarily baroque punctuation rule for lists: Introduce your formal list with a colon; then separate the list members from each other by commas UNLESS one of the members itself has an internal comma, IN WHICH CASE you then separate the members by semicolons. (Whew!) We no longer need this, because we now have two completely separate ways of constructing lists.

If the list's members each need to be allowed a certain amount of weight and emphasis, introduce the list with a colon and separate the members with semicolons. Both of those marks of punctuation (I call the structural location to which they give closure "stress positions") invite the reader to give a separate moment of attention and value to each list member.

In order to go forward with this purchase, we must prepare ourselves by

Published in *Litigation,* Volume 46, Number 1, Fall 2019. © 2019 by the American Bar Association. Reproduced with permission. All rights reserved. This information or any portion thereof may not be copied or disseminated in any form or by any means or stored in an electronic database or retrieval system without the express written consent of the American Bar Association.

> accomplishing three pre-tasks: a thorough inventory of both inventories; a securing of the cooperation of both of the adjoining landowners; and an investigation into the history of the two outstanding lawsuits.

Each of the tasks, each with its own stress position, has a moment to reverberate in the reader's mind. Now reread the paragraph, changing in your mind's eye the semicolons to commas. Can you see how burdensome it has become?

But if your list is a lightweight list, one that can be read in a single, slight, continuous breath, you can now introduce such a list by an em dash and separate its members by commas. You ask your car salesperson in what colors he can get you a Model 174b before the first of next month. He sends you an email:

I can get you the 174b by that date in three colors — red, white, and blue.

"Red, white, and blue" can roll off the mind's tongue in one swift motion. Your salesman would have proved pompous and ridiculous had he written you,

I can get you the 174b by that date in three colors: red; white; and blue.

Too much heavy artillery for the job at hand.

Sentence Interruption

The second use of the em dash involves a pair of them interrupting a sentence in a manner similar to but different from the interruption caused by a set of parentheses. Again we have gained something. Compare the two interrupters:

> We can expect cooperation from all of the tenants (except the Harringtons) by the first of the month.

> We can expect cooperation from all of the tenants — except the Harringtons — by the first of the month.

This is not a question of which is right or superior or preferable: It is a question of how the two differ from each other. The parenthetical interruption invites the reader to lower the silent reading voice, thus rendering the parenthetical contents of relatively little importance: "Sure, the Harringtons might not get it together to sign the agreement; but we don't really need them." The em dashes, on the other hand, invite the reader to raise that silent voice: "Darn it, those Harringtons may prove the fly in this ointment. We will have to do something about that."

Em dashes offer a subtle but convincing reading instruction that goes in the other direction from that offered by parentheses.

This approaches the kind of control a musical composer has with signs that tell the performer to suddenly, and briefly, get either louder or softer. Em dashes offer a subtle but convincing reading instruction that goes in the other direction from that offered by parentheses.

Sentence Endings

The third gift the em dash has for us occurs when a single dash appears just before the end of a sentence. Well used, it is once again subtle and once again effective. It concerns an important reader expectation I have revisited many times in this series of essays — the stress position. Readers naturally tend to stress any material that arrives just as the grammatical structure of the sentence comes to a full halt. That halt occurs at the arrival of any properly used period, colon, or semicolon. (It can never occur at a comma.) As we sense a sentence is winding toward its end, our expectation increases that we shall be emphasizing there the most stress-worthy material in the sentence. Our failure as writers in English to put the stress-worthy material in the stress position remains the number one problem in legal writing, everywhere.

If, as readers, we approach the end of the sentence and spot an em dash at the sentence's penultimate moment, it says all of the following to us: "Dear reader, if I had been a period instead of an em dash, this would have been a perfectly fine sentence. The material coming just before me was completely capable of being the most important thing for you to consider in this sentence. But, dear reader, my message to you is that we have one yet even more important thing to say, which will come immediately after me, in the stress position. It will one-up the previous important bit of information. Be prepared for it."

> We have been able to get signed permission forms from everyone in both buildings — except those cursed Harringtons.

After all this good news about the em dash, I must end with a great em dash annoyance, perpetrated upon us by a grand majority of reader-insensitive writers of grammar books. We are told we must use no space to the left or right of an em dash. What? Doing that *connects* the material surrounding the dashes to the dashes; but the whole purpose of the dash is to *separate* material. I wish to thank my understanding editors who have allowed me — even if just for this essay — to let my dashes breathe by putting space around them, violating usual ABA style. If a large number of us continually make such requests of editors, we may yet be able to foment a reader-friendly punctuational revolution.

Which reminds me of the nonsensical fracas over the Oxford comma — but I've covered that in a previous essay. ■

Published in *Litigation,* Volume 46, Number 1, Fall 2019. © 2019 by the American Bar Association. Reproduced with permission. All rights reserved. This information or any portion thereof may not be copied or disseminated in any form or by any means or stored in an electronic database or retrieval system without the express written consent of the American Bar Association.